

26STCV07970 26STCV07970

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-17

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Case Number: 26STCV07970 Hearing Date: July 17, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the July 17, 2026 ISC. The parties are welcome to provide input and

propose modifications to any aspect of the minute order at the Initial Status

Conference. If all parties submit on the

tentative minute order prior to the commencement of the July 17, 2026 ISC, the

Court will adopt the tentative minute order, and the parties need not

appear. However, if there is any matter

that any party would like to discuss, including any proposed change to this

tentative minute order, that party should not submit on this tentative but

instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with

Department 9 court staff and wait for the case to be called unless you receive

notification that all parties have submitted on the tentative minute order.

MARIA

[TENTATIVE] MINUTE

ORDER

Plaintiff has

filed proof of service of the operative Summons and Complaint as to certain

defendants who have not timely responded to service of the operative Summons

and Complaint, including BASTIAT AMERICANA, INC..

The time to

respond for these defendants who have been served has already lapsed.

If any Defendant

fails to timely respond to the service of the operative Summons and Complaint

by filing a Notice of Appearance, Plaintiff must pursue that Defendant's

default with diligence.

The Court reminds

the parties that ultimately, the Court may not enter default judgment in an

amount exceeding the amount demanded in the Complaint. (CCP 585(b).)

The Court may not grant relief not demanded in the complaint by default

judgment even though that relief otherwise would have been proper. (CCP §

580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.*

(2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that

demanded in complaint is void). "It is

fundamental to the concept of due process that a defendant be given notice of

the existence of a lawsuit and notice of the specific relief which is sought in

the complaint served upon him." (Marriage of Lippel (1990) 51 Cal.3d

1160, 1166 [emphasis added].)

Accordingly, prior to seeking any Defendant's default, Plaintiff may

wish to review the operative Complaint to determine whether the operative

Complaint gives notice of the amount of damages that Plaintiff seeks to recover

in the event of a default judgment; if the operative Complaint fails to do so,

it may be futile for Plaintiff to seek entry of Defendant's default without

first amending the Complaint to clearly state and give notice of the amount of

damages that Plaintiff is seeking to recover in the event of a default judgment. In the event that Plaintiff wishes to amend

the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff

leave to file an amended complaint. If

Defendant again fails to respond upon being served with the amended complaint,

a request for entry of Defendant's default on the Amended Complaint may then

possibly lead to a request for entry of default judgment in an amount equal to

or less than that stated in the Amended Complaint. To be clear, the Court is not ordering

Plaintiff to amend the operative Complaint; if, after considering the above,

Plaintiff voluntarily wishes to amend the operative Complaint to give notice of

the amount of damages that Plaintiff seeks to recover in the event of a default

judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than August

31, 2026, Plaintiff's Counsel must file either a request for entry of BASTIAT

AMERICANA, INC.'s default or a declaration explaining the failure to seek and

obtain BASTIAT AMERICANA, INC.'s default, setting forth any and all efforts

undertaken to obtain BASTIAT AMERICANA, INC.'s default, and explaining why

sanctions (including monetary sanctions of at least \$1,000) should not be

imposed for failure to timely seek BASTIAT AMERICANA, INC.'s default, in

compliance with California Rules of Court, Rule 3.720. Failure to comply by August 31, 2026

may result in the Court setting an OSC re sanctions.

The operative

complaint currently does not include any claim for civil penalties pursuant to

Labor Code section 2699 (PAGA penalties).

If Plaintiff wishes to amend the Complaint to add a claim for PAGA

penalties and is prepared to do so, the Court hereby lifts the stay to grant

Plaintiff leave to file an amended complaint adding a claim for PAGA penalties

as long as Plaintiff files and serves such amended complaint by no later than August

31, 2026. To be clear, the Court

is not ordering Plaintiff to amend the operative Complaint; if Plaintiff

voluntarily wishes to amend the operative Complaint to add a claim for PAGA

penalties, the Court is simply granting leave for Plaintiff to do so. By no later than August 31, 2026,

Plaintiff must file and serve a status report as to whether Plaintiff intends

to file either a separate action for PAGA penalties or an amended complaint in

the instant action adding a claim for PAGA penalties, and if so, when Plaintiff

intends to file the claim for PAGA penalties (either as a complaint in a

separate action or by way of amendment to the complaint in this action).

The previously

imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to September 14, 2026 at 8:30 am. The parties are to file a Joint Initial

Status Conference Report by no later than September 7, 2026 in

compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of

service of such.